

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4060

By: Alonso-Sandoval of the
House

and

Dossett of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to the Corporation Commission;
12 creating the Plug-In Solar Power Amendments Act;
13 defining terms; making certain exemptions;
14 prohibiting electric utilities from making certain
15 requirements of users; providing for safety
16 standards; limiting certain liability; creating
17 certain responsibility; authorizing the adoption of
18 certain rules; prohibiting certain aspects of rules;
19 limiting applicability of act; providing for
20 codification; and providing an effective date.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 875 of Title 17, unless there is
24 created a duplication in numbering, reads as follows:

 This act shall be known and may be cited as the "Plug-In Solar
Power Amendments Act".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 876 of Title 17, unless there is
3 created a duplication in numbering, reads as follows:

4 As used in this act:

5 1. "Electric utility" means any public utility providing retail
6 electric service subject to the jurisdiction of the Oklahoma
7 Corporation Commission.

8 2. "Portable solar generation device" means a solar
9 photovoltaic device that:

- 10 a. has a rated alternating current output capacity of not
11 more than one thousand two hundred (1,200) watts in
12 the aggregate,
- 13 b. is designed to connect to a customer's premises wiring
14 through a standard grounded one hundred twenty-volt
15 electrical outlet,
- 16 c. includes integrated anti-islanding or equivalent
17 safety functionality that prevents energizing a
18 building's electrical system during a power outage,
19 and
- 20 d. is intended primarily to offset electricity consumed
21 on the premises of the retail electric customer.

22 3. "Retail electric customer" means a residential customer
23 receiving electric service from an electric utility.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 877 of Title 17, unless there is
3 created a duplication in numbering, reads as follows:

4 A portable solar generation device that meets the requirements
5 of this act:

6 1. Shall not be considered an interconnection under state law
7 or Oklahoma Corporation Commission rules;

8 2. Shall not be subject to net metering statutes, tariffs, or
9 programs; and

10 3. Shall not require an interconnection agreement, application,
11 inspection, or approval from an electric utility or the Oklahoma
12 Corporation Commission.

13 SECTION 4. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 878 of Title 17, unless there is
15 created a duplication in numbering, reads as follows:

16 An electric utility shall not require a retail electric customer
17 using a qualifying portable solar generation device to:

18 1. Obtain prior authorization or permission from the utility;

19 2. Pay any fee, charge, or tariff related to the installation
20 or use of the device;

21 3. Install additional metering, controls, or equipment beyond
22 what is integrated into the device;

23 4. Execute an interconnection, net metering, or service
24 modification agreement; or

1 5. Purchase insurance or provide indemnification related to the
2 device.

3 SECTION 5. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 879 of Title 17, unless there is
5 created a duplication in numbering, reads as follows:

6 A portable solar generation device shall comply with nationally
7 recognized electrical safety standards, including anti-islanding
8 protection. Nothing in this act limits the authority of state or
9 local electrical inspectors to enforce generally applicable
10 electrical safety codes unrelated to utility interconnection.

11 SECTION 6. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 880 of Title 17, unless there is
13 created a duplication in numbering, reads as follows:

14 An electric utility shall not be liable for any damage, injury,
15 or loss caused by a portable solar generation device or the
16 installation, operation, or maintenance of such a device by a retail
17 electric customer. The retail electric customer bears
18 responsibility for the proper installation and maintenance of the
19 device and compliance with applicable safety standards.

20 SECTION 7. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 881 of Title 17, unless there is
22 created a duplication in numbering, reads as follows:

23 A. The Oklahoma Corporation Commission may adopt administrative
24 rules solely as necessary to:

1 1. Enforce the provisions of this act; and

2 2. Ensure compliance with applicable safety standards.

3 B. Rules adopted under this section shall not:

4 1. Require registration, approval, or notification for portable
5 solar generation devices;

6 2. Impose fees or charges;

7 3. Reduce the maximum wattage authorized by statute; or

8 4. Subject such devices to net metering or interconnection
9 requirements.

10 SECTION 8. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 882 of Title 17, unless there is
12 created a duplication in numbering, reads as follows:

13 Nothing in this act shall be construed to:

14 1. Authorize compensation for exported electricity;

15 2. Modify existing distributed generation or net metering
16 programs; or

17 3. Limit the authority of the Oklahoma Corporation Commission
18 over traditional interconnection of electric generation facilities.

19 SECTION 9. This act shall become effective November 1, 2026.
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21 COMMITTEE REPORT BY: COMMITTEE ON ENERGY AND NATURAL RESOURCES
22 OVERSIGHT, dated 03/04/2026 - DO PASS, As Amended and Coauthored.
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